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Gaming ordinance

ORDINANCE NO. 2026-_____

LUMBEE TRIBE OF NORTH CAROLINA

AN ORDINANCE TO AUTHORIZE GAMING AND TO ESTABLISH THE LUMBEE GAMING GOVERNANCE, TRANSPARENCY, AND ECONOMIC DEVELOPMENT ACT

WHEREAS,

The Lumbee Tribe of North Carolina is a sovereign Indian Tribe possessing the inherent authority of self-government and the authority to enact laws for the protection of its people, lands, assets, governmental institutions, and future generations; and

WHEREAS,

Article V of the Constitution of the Lumbee Tribe of North Carolina reserves to the General Membership the power to initiate tribal ordinances, including ordinances affecting fundamental rights, and further provides that any ordinance authorizing gaming within Lumbee Territory shall be deemed to affect fundamental rights; and

WHEREAS,

The General Membership recognizes that gaming, when conducted honestly, responsibly, and in accordance with applicable law, has the potential to provide significant economic opportunities, employment, governmental revenues, educational opportunities, health services, housing, cultural preservation, infrastructure improvements, and other governmental benefits for the Lumbee people; and

WHEREAS,

The General Membership further recognizes that the development of gaming enterprises involves substantial public assets, significant financial obligations, complex contractual relationships, and decisions that will affect future generations of tribal citizens; and

WHEREAS,

The General Membership finds that public confidence in tribal government requires the highest standards of integrity, accountability, transparency, ethical conduct, fiscal responsibility, and independent oversight throughout every phase of gaming development and operation; and

WHEREAS,

The General Membership declares that no elected official, appointed official, employee, contractor, consultant, lender, developer, or other person shall improperly benefit from confidential information, public office, or governmental authority in connection with tribal gaming; and

WHEREAS,

The General Membership intends that all gaming authorized under this Ordinance shall remain under the ownership, control, and regulatory authority of the Lumbee Tribe and shall be conducted exclusively for the benefit of the Tribe and its enrolled members; and

WHEREAS,

The General Membership further finds that transparent governance before construction of any gaming facility is essential to protecting tribal assets, preserving public trust, preventing conflicts of interest, and ensuring that all major decisions are made in the best interests of the Lumbee people;

NOW, THEREFORE, BE IT ORDAINED

by the General Membership of the Lumbee Tribe of North Carolina, acting pursuant to Article V of the Constitution of the Lumbee Tribe of North Carolina, that the following Ordinance is hereby adopted.

SECTION 1. SHORT TITLE

This Ordinance shall be known and may be cited as the Lumbee Gaming Governance, Transparency, and Economic Development Act.

SECTION 2. AUTHORITY

This Ordinance is enacted pursuant to:

- (a) the inherent sovereign authority of the Lumbee Tribe of North Carolina;
- (b) Article V of the Constitution of the Lumbee Tribe of North Carolina;
- (c) all other applicable provisions of tribal law;
- (d) applicable federal law governing Indian gaming.

Nothing contained herein shall be interpreted as a waiver of the sovereign immunity of the Lumbee Tribe except where expressly authorized by subsequent ordinance duly adopted by the General Membership.

SECTION 3. PURPOSE

The purposes of this Ordinance are to:

- (a) authorize tribal gaming consistent with applicable tribal and federal law;
 - (b) establish a comprehensive governance structure for the planning, financing, construction, regulation, licensing, and operation of tribal gaming enterprises;
 - (c) ensure that all gaming activities are conducted honestly, fairly, and free from corruption, fraud, self-dealing, undue influence, or conflicts of interest;
 - (d) preserve the sole proprietary interest of the Lumbee Tribe in all authorized gaming enterprises except as otherwise permitted by applicable federal law;
 - (e) ensure that gaming revenues are managed prudently and exclusively for governmental purposes benefiting the Lumbee Tribe and its enrolled members;
 - (f) establish independent regulatory oversight insulated from political influence;
 - (g) promote transparency, accountability, and public participation in major gaming decisions;
 - (h) safeguard tribal lands, financial resources, and governmental assets;
 - (i) encourage economic development while preserving the integrity of tribal government.
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SECTION 4. LEGISLATIVE FINDINGS

The General Membership hereby finds and declares that:

- (a) Gaming constitutes a governmental economic development activity of extraordinary importance.
 - (b) Decisions concerning gaming development involve assets belonging collectively to the Lumbee people.
 - (c) The success of gaming depends upon maintaining public confidence in tribal government.
 - (d) Strong ethics laws and independent oversight reduce opportunities for fraud, corruption, favoritism, and financial abuse.
 - (e) Independent financial audits, transparent procurement procedures, and public disclosure of governmental actions strengthen tribal institutions.
 - (f) Major gaming decisions should be made openly whenever consistent with protecting legitimate confidential business information.
 - (g) Tribal officials occupy positions of public trust and owe fiduciary duties to the Lumbee Tribe.
 - (h) Gaming revenues should be preserved for the benefit of present and future generations.
 - (i) The development and operation of gaming enterprises shall advance tribal self-determination, economic independence, and responsible governmental stewardship.
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SECTION 5. DECLARATION OF POLICY

It is hereby declared to be the public policy of the Lumbee Tribe that:

- (a) Integrity shall take precedence over speed in the development of gaming enterprises.
 - (b) Public trust is a tribal asset deserving the highest protection.
 - (c) Public office is a public trust and shall never be used for personal financial benefit.
 - (d) Competition, fairness, transparency, and accountability shall govern all procurement and contracting decisions.
 - (e) Independent regulation is essential to preserving confidence in tribal gaming.
 - (f) Gaming revenues are governmental assets and shall be administered with the same fiduciary care as all other tribal property.
 - (g) Every person exercising authority under this Ordinance shall act solely in the best interests of the Lumbee Tribe and its enrolled members.
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SECTION 6. DEFINITIONS

Unless the context clearly indicates otherwise:

Applicant means any individual, partnership, corporation, limited liability company, joint venture, tribal enterprise, or other legal entity seeking a license, contract, lease, permit, or approval under this Ordinance.

Commission means the Lumbee Gaming Commission established by this Ordinance.

Conflict of Interest means any financial, personal, familial, or business relationship that could reasonably impair or appear to impair impartial decision-making.

Developer means any person or entity seeking to construct, finance, manage, design, or otherwise participate in the development of a gaming enterprise.

Gaming Enterprise means any casino, gaming facility, hotel, resort, entertainment venue, or other enterprise authorized under this Ordinance.

General Membership means the enrolled members of the Lumbee Tribe entitled to vote pursuant to the Constitution.

Immediate Family Member includes a spouse, domestic partner, parent, child, sibling, grandparent, grandchild, parent-in-law, sibling-in-law, child-in-law, or any person residing within the same household.

Inspector General means the independent Office of the Inspector General established pursuant to this Ordinance.

Material Financial Interest means any ownership interest, investment, debt, compensation arrangement, commission, gift, loan, consulting agreement, contingent payment, or other financial benefit exceeding thresholds established by the Commission through regulation.

Public Record means any document, report, contract, financial statement, audit, meeting minutes, correspondence, electronic record, or other record created or maintained pursuant to this Ordinance, except where

disclosure is prohibited by applicable law or necessary to protect privileged, confidential, or security-sensitive information.

Tribal Official means any elected official, appointed official, commissioner, officer, employee, committee member, consultant acting on behalf of the Tribe, or any person exercising governmental authority pursuant to this Ordinance.

CREATION OF THE LUMBEE GAMING COMMISSION, POWERS, DUTIES, LICENSING, ETHICS, AND CONFLICTS OF INTEREST

SECTION 7. CREATION OF THE LUMBEE GAMING COMMISSION

7.1 Establishment

There is hereby established an independent regulatory body to be known as the Lumbee Gaming Commission (“Commission”).

The Commission shall regulate all gaming activities authorized by this Ordinance and shall exercise its authority independently and in the best interests of the Lumbee Tribe.

7.2 Independence

The Commission shall not be subject to the direction or supervision of any elected official regarding licensing, investigations, enforcement actions, or regulatory decisions except as expressly provided by this Ordinance.

7.3 Sole Regulatory Authority

Except where otherwise required by federal law, the Commission shall possess exclusive regulatory authority over all gaming conducted pursuant to this Ordinance.

SECTION 8. COMPOSITION OF THE COMMISSION

8.1 Membership

The Commission shall consist of five (5) Commissioners.

8.2 Qualifications

Each Commissioner shall:

- (a) be an enrolled member of the Lumbee Tribe whenever practicable;
- (b) possess demonstrated integrity and good moral character;
- (c) possess experience in one or more of the following:

accounting

auditing

finance

banking

law

law enforcement

construction management

engineering

tribal government

public administration

gaming regulation

cybersecurity

economic development.

8.3 Disqualifications

No Commissioner may:

(a) hold elected tribal office;

(b) serve on Tribal Council;

(c) be employed by a gaming enterprise;

(d) hold any ownership interest in a gaming contractor;

(e) receive compensation from any gaming vendor;

(f) have been convicted of fraud, bribery, embezzlement, theft, public corruption, money laundering, or other crime involving dishonesty.

SECTION 9. APPOINTMENT AND TERMS

9.1 Appointment

Commissioners shall be nominated by an independent selection committee and confirmed pursuant to procedures established by tribal law.

9.2 Terms

Commissioners shall serve staggered five-year terms.

No Commissioner may serve more than two consecutive terms.

9.3 Removal

A Commissioner may be removed only for:

neglect of duty;
gross misconduct;
incapacity;
violation of this Ordinance;
conviction of a disqualifying offense.

Removal shall require written findings after notice and an opportunity to be heard.

SECTION 10. OFFICERS

The Commissioners shall annually elect:

Chairperson

Vice-Chairperson

Secretary

The Chairperson shall preside over meetings but shall possess no greater voting authority than any other Commissioner.

SECTION 11. MEETINGS

The Commission shall meet at least once each calendar month.

Special meetings may be called by the Chairperson or by three Commissioners.

Except where confidential information is discussed, meetings shall be open to enrolled members.

Agendas shall be published no fewer than seven (7) calendar days before each regular meeting.

Approved minutes shall be published within thirty (30) days.

SECTION 12. POWERS OF THE COMMISSION

The Commission shall have authority to:

- (a) issue gaming licenses;
- (b) suspend or revoke licenses;
- (c) investigate violations;
- (d) conduct hearings;
- (e) issue subpoenas where authorized by tribal law;
- (f) inspect gaming facilities;

- (g) examine books and records;
 - (h) adopt regulations consistent with this Ordinance;
 - (i) establish internal controls;
 - (j) approve surveillance standards;
 - (k) regulate gaming equipment;
 - (l) oversee licensing investigations;
 - (m) impose civil penalties;
 - (n) refer criminal matters to appropriate authorities;
 - (o) retain independent auditors and consultants;
 - (p) recommend amendments to this Ordinance.
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SECTION 13. DUTIES OF THE COMMISSION

The Commission shall:

- (a) preserve the integrity of tribal gaming;
 - (b) protect tribal assets;
 - (c) ensure compliance with tribal and federal law;
 - (d) prevent criminal influence;
 - (e) maintain public confidence;
 - (f) promote transparency;
 - (g) safeguard confidential information;
 - (h) publish annual reports.
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SECTION 14. LICENSING

No person may:

- operate,
- manage,
- construct,
- finance,
- consult,
- or provide gaming-related services

without obtaining any license required by this Ordinance or regulations adopted pursuant to it.

SECTION 15. BACKGROUND INVESTIGATIONS

Every applicant for a key employee, primary management official, vendor, consultant, financing, or management license shall undergo a background investigation.

The investigation shall include, as applicable:

criminal history,

financial history,

civil litigation involving fraud,

gaming disciplinary actions,

regulatory history,

bankruptcy filings,

tax compliance,

business ownership interests,

conflicts of interest.

The Commission may deny any application where licensure would not protect the integrity of tribal gaming.

SECTION 16. LICENSE DENIAL

The Commission may deny a license whenever it finds that an applicant:

lacks honesty,

lacks integrity,

made false statements,

concealed material information,

has unsuitable financial associations,

poses a threat to tribal assets,

or otherwise would undermine public confidence.

SECTION 17. CODE OF ETHICS

Every Tribal Official participating in gaming decisions owes a fiduciary duty to the Lumbee Tribe.

Every official shall:

act honestly;
avoid conflicts of interest;
disclose financial interests;
preserve confidential information;
exercise independent judgment;
place tribal interests above personal interests.

SECTION 18. CONFLICTS OF INTEREST

No Tribal Official shall:
participate in any decision affecting a business in which the official possesses a Material Financial Interest;
participate in negotiations involving Immediate Family Members;
accept compensation from gaming vendors;
accept gifts exceeding limits established by Commission regulation;
use confidential information for personal benefit;
attempt to influence procurement for personal gain.

SECTION 19. FINANCIAL DISCLOSURE

Each Commissioner and every Tribal Official involved in gaming shall annually file a confidential financial disclosure statement.

The statement shall disclose:
employment,
outside compensation,
ownership interests,
real estate holdings related to gaming,
business interests,
consulting agreements,
debts owed by gaming contractors,
and any other information required by regulation.
Failure to file shall constitute grounds for removal.

SECTION 20. GIFTS

No Tribal Official may solicit or knowingly accept any gift, travel, entertainment, loan, hospitality, campaign contribution earmarked for personal benefit, or thing of value from:

gaming contractors,

developers,

vendors,

consultants,

lobbyists,

or applicants,

except for nominal items permitted by regulation.

SECTION 21. RECUSAL

Whenever a reasonable person could question the impartiality of a Tribal Official, that official shall:

disclose the conflict,

recuse from discussion,

recuse from deliberation,

recuse from voting.

The recusal shall be entered into the official record.

SECTION 22. REVOLVING DOOR RESTRICTIONS

No elected Tribal Official or Commissioner may:

accept employment,

consulting contracts,

board membership,

or compensation

from a gaming contractor

for a period of two (2) years after leaving office.

SECTION 23. NEPOTISM

No Tribal Official may supervise, appoint, hire, promote, award contracts to, or influence employment decisions involving an Immediate Family Member except as expressly permitted by Commission regulation with full disclosure and recusal.

SECTION 24. LOBBYIST REGISTRATION

Every person compensated to influence gaming legislation, procurement, licensing, financing, or casino development shall register with the Commission.

Lobbyist disclosures shall identify:

clients,

compensation,

subjects discussed,

officials contacted.

A public registry shall be maintained.

SECTION 25. DUTY TO REPORT

Every Tribal Official who becomes aware of fraud, bribery, kickbacks, bid rigging, theft, embezzlement, self-dealing, or misuse of tribal assets shall promptly report such information to the Commission or Inspector General.

No person shall retaliate against an individual making a good-faith report.

SECTION 26. REGULATORY AUTHORITY

The Commission may adopt regulations necessary to implement this Ordinance provided such regulations are:

consistent with this Ordinance;

consistent with the Constitution;

consistent with applicable federal law;

published before becoming effective;

available to enrolled members.

CASINO DEVELOPMENT, LAND ACQUISITION, PROCUREMENT, FINANCING, AND REVENUE MANAGEMENT

SECTION 27. ESTABLISHMENT OF CASINO DEVELOPMENT AUTHORITY

27.1 Creation

There is hereby established a separate entity to be known as the Lumbee Casino Development Authority (“Development Authority”).

The Development Authority shall be responsible for planning, financing, constructing, and overseeing the development of any gaming enterprise authorized under this Ordinance.

27.2 Separation of Functions

The Development Authority shall operate independently from the Gaming Commission.

The Gaming Commission shall not engage in construction, financing negotiations, or vendor selection except for regulatory approval functions required under this Ordinance.

SECTION 28. PURPOSE OF DEVELOPMENT AUTHORITY

The Development Authority shall:

- (a) ensure efficient and professional development of gaming facilities;
 - (b) protect the Tribe from unfair contracting practices;
 - (c) ensure fair market value in all transactions;
 - (d) prevent corruption and insider influence during development;
 - (e) maximize long-term economic return to the Tribe;
 - (f) ensure all development decisions are documented, transparent, and auditable.
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SECTION 29. LAND ACQUISITION STANDARDS

29.1 General Requirement

No land shall be purchased, leased, optioned, or otherwise acquired for gaming purposes without compliance with this Section.

29.2 Independent Appraisals

All real property transactions shall require:

- (a) at least one independent appraisal; and
- (b) a second independent appraisal for transactions exceeding \$1,000,000.

Appraisers shall have no financial or familial relationship with the seller or any Tribal Official.

29.3 Disclosure of Negotiations

All land negotiations related to gaming development shall be documented.

Final executed agreements shall be disclosed to the Gaming Commission and made available to the General Membership within thirty (30) days of closing, subject to limited redactions for bona fide security or competitive confidentiality.

29.4 Anti-Speculation Rule

No Tribal Official or employee involved in gaming development shall:

purchase,

option,

or otherwise acquire any interest in land within identified gaming development zones during the pendency of negotiations.

SECTION 30. LAND ACQUISITION REVIEW BOARD

30.1 Establishment

A Land Acquisition Review Board is hereby created to evaluate all proposed gaming-related land acquisitions.

30.2 Composition

The Board shall consist of five (5) members with expertise in:

real estate valuation,

finance,

law,

economic development,

and public administration.

No member may have any financial interest in gaming-related land transactions.

30.3 Duties

The Board shall:

review all appraisals;

evaluate market conditions;

analyze purchase price fairness;

issue written findings;

recommend approval or rejection to the Development Authority.

SECTION 31. PROCUREMENT AND CONTRACTING

31.1 Competitive Bidding Requirement

All contracts exceeding \$250,000 shall be awarded through competitive bidding unless the Development Authority makes a written finding that competitive bidding is not practicable.

31.2 Transparency in Procurement

All Requests for Proposals (RFPs) shall:

be publicly posted;

include evaluation criteria;

state submission deadlines;

identify scoring methodology.

31.3 Evaluation Process

All bids shall be evaluated using objective criteria including:

cost,

experience,

financial stability,

project timeline,

and technical capacity.

31.4 Prohibition on Collusion

Any evidence of bid rigging, collusion, or improper influence shall result in immediate disqualification and referral to the Gaming Commission.

SECTION 32. CONTRACT DISCLOSURE

All executed contracts related to gaming development shall be:

filed with the Development Authority;

reviewed by the Gaming Commission for compliance;

made available to enrolled members within sixty (60) days, subject to lawful confidentiality protections.

SECTION 33. MANAGEMENT AGREEMENTS

33.1 Approval Requirement

Any gaming management agreement shall require:

review by the Gaming Commission;
review by independent legal counsel;
approval by the Development Authority;
and, if required by federal law, approval by the appropriate federal regulatory authority.

33.2 Limitations

No management agreement shall:
transfer tribal ownership of gaming operations;
grant exclusive long-term control inconsistent with tribal sovereignty;
or create disproportionate profit-sharing arrangements that undermine tribal benefit.

SECTION 34. FINANCING AND DEBT

34.1 Debt Authorization

The Tribe may incur debt for gaming development only upon compliance with this Section.

34.2 Debt Limits

No financing arrangement shall exceed:
twenty-five percent (25%) of projected annual net gaming revenue
without approval by the General Membership.

34.3 Transparency in Financing

All financing agreements shall disclose:
interest rates;
fees;
guarantees;
collateral;
repayment structure;
default provisions.

34.4 Prohibition on Undisclosed Guarantees

No Tribal Official may enter into side agreements, guarantees, or contingent obligations related to gaming financing that are not fully disclosed in the primary financing documents.

SECTION 35. REVENUE MANAGEMENT

35.1 Tribal Ownership of Revenue

All net gaming revenue shall be the property of the Lumbee Tribe.

35.2 Segregated Accounts

Gaming revenues shall be deposited into segregated accounts separate from general tribal funds for purposes of tracking and audit transparency.

35.3 Annual Allocation Plan

The Tribal Council, in consultation with the Development Authority and subject to applicable law, shall publish an annual allocation plan for gaming revenues addressing:

health services;

education;

housing;

elder services;

infrastructure;

economic development;

government operations;

emergency reserves.

SECTION 36. PROHIBITION ON SELF-DEALING

36.1 General Rule

No Tribal Official, employee, contractor, or immediate family member shall receive any financial benefit from:

land acquisitions;

construction contracts;

financing arrangements;

management agreements;

vendor contracts;

related to gaming development.

36.2 Voidable Transactions

Any contract entered into in violation of this Section shall be voidable by the Tribe.

SECTION 37. CONSTRUCTION OVERSIGHT

37.1 Independent Project Oversight

The Development Authority shall retain an independent construction oversight firm with no financial ties to contractors.

37.2 Certification of Payments

No contractor payment exceeding thresholds established by regulation shall be released without certification of:

work completion;

budget compliance;

contract conformity.

SECTION 38. PROJECT REPORTING

The Development Authority shall provide quarterly reports to:

the Gaming Commission;

Tribal Council;

and the General Membership (in summary form),

including:

budget status;

project timelines;

contract awards;

change orders;

risk assessments.

SECTION 39. RECORDKEEPING

All documents relating to gaming development shall be preserved, including:

contracts;

appraisals;

emails regarding major decisions;

meeting minutes;

financial models;

negotiation summaries.

Such records shall be retained in accordance with tribal records policy and made available for audit.

SECTION 40. PUBLIC ACCOUNTABILITY

The Development Authority shall maintain a public transparency portal containing:

approved contracts;

project updates;

budget summaries;

audit results;

procurement notices.

Sensitive proprietary information may be redacted only when necessary to protect legitimate competitive interests.

OVERSIGHT, AUDITS, TRANSPARENCY, WHISTLEBLOWER PROTECTION, MEMBER APPROVALS, ENFORCEMENT, AND FINAL PROVISIONS

SECTION 41. INDEPENDENT OFFICE OF THE INSPECTOR GENERAL

41.1 Establishment

There is hereby established an independent Office of the Inspector General (“OIG”) for gaming-related activities.

The Inspector General shall operate independently from the Gaming Commission, the Development Authority, and the Tribal Council.

41.2 Purpose

The OIG shall prevent, detect, and investigate:

fraud,

waste,

abuse,

self-dealing,

corruption,

conflicts of interest,

and violations of this Ordinance.

41.3 Appointment

The Inspector General shall be appointed through a process designed to ensure independence and shall serve a fixed term.

The Inspector General may be removed only for cause, after notice and an opportunity to be heard.

41.4 Authority

The Inspector General may:

conduct investigations;

review contracts and transactions;

audit records;

interview employees;

issue subpoenas where authorized under tribal law;

issue public reports;

refer matters for enforcement or prosecution where applicable law allows.

SECTION 42. INTERNAL AND EXTERNAL AUDITS

42.1 Annual Independent Audit

All gaming-related financial activity shall be subject to an annual independent audit conducted by a nationally recognized certified public accounting firm with no conflicts of interest.

42.2 Audit Publication

A public summary of all audit findings shall be published annually and made available to all enrolled members.

42.3 Forensic Audits

The Inspector General or Gaming Commission may order a forensic audit upon:

credible allegations of fraud;

material financial discrepancies;

or petition supported by at least five percent (5%) of enrolled voting members.

SECTION 43. PUBLIC RECORDS AND TRANSPARENCY

43.1 Presumption of Openness

All records relating to gaming governance, development, and financial activity shall be presumed to be public unless specifically exempted.

43.2 Public Disclosure Portal

The Tribe shall maintain a continuously updated online portal containing:

budgets;

contracts;

land transactions;

audit reports;

Commission regulations;

Development Authority reports;

meeting agendas and minutes.

43.3 Limited Exemptions

Records may be withheld only when disclosure would:

compromise security systems;

reveal trade secrets;

violate applicable law;

or materially impair competitive negotiations.

All exemptions shall be narrowly construed.

SECTION 44. WHISTLEBLOWER PROTECTION

44.1 Protection from Retaliation

No Tribal Official or employee shall retaliate against any person who in good faith:

reports suspected wrongdoing;

participates in an investigation;

refuses to engage in illegal or unethical conduct.

44.2 Reporting Channels

The Tribe shall maintain confidential reporting channels including anonymous reporting mechanisms.

44.3 Remedies

Violations of this Section may result in:

reinstatement of employment;

back pay;

disciplinary action;

removal from office;
and other remedies authorized by tribal law.

SECTION 45. ETHICS ENFORCEMENT

45.1 Ethics Violations

Violations of conflict-of-interest, disclosure, or ethics provisions shall be enforceable by:
the Gaming Commission;
the Inspector General;
and other bodies authorized under tribal law.

45.2 Sanctions

Sanctions may include:
civil penalties;
removal from office;
license revocation;
contract termination;
disqualification from future tribal service;
restitution of improper gains.

SECTION 46. MEMBER APPROVAL REQUIREMENTS

46.1 Matters Requiring Membership Approval

The following actions shall require approval by the General Membership where consistent with the Constitution:

- (a) sale or transfer of gaming assets;
- (b) long-term gaming management agreements exceeding ten (10) years;
- (c) issuance of debt exceeding thresholds established in this Ordinance;
- (d) acquisition of real property above \$10,000,000 for gaming purposes;
- (e) closure or relocation of a gaming facility;
- (f) amendments to this Ordinance affecting governance, ethics, or transparency.

46.2 Petition for Review

Five percent (5%) of enrolled voting members may petition to require a referendum on any major gaming development decision not otherwise subject to mandatory approval.

SECTION 47. EMERGENCY PROVISIONS

47.1 Limited Emergency Authority

Emergency actions affecting gaming operations may be taken only to:

- protect life and safety;
- prevent immediate financial loss;
- comply with binding legal requirements.

47.2 Post-Emergency Review

All emergency actions shall be reviewed within thirty (30) days by the Gaming Commission and reported to the Inspector General.

SECTION 48. ENFORCEMENT

48.1 Civil Enforcement

Violations of this Ordinance may result in:

- injunctive relief;
- contract voidance;
- civil penalties;
- disgorgement of profits.

48.2 Administrative Enforcement

The Gaming Commission and Inspector General may impose administrative sanctions consistent with this Ordinance and implementing regulations.

48.3 Referral Authority

Where applicable law permits, violations involving criminal conduct may be referred to appropriate law enforcement authorities.

SECTION 49. SEVERABILITY

If any provision of this Ordinance is held invalid or unenforceable, the remainder of the Ordinance shall remain in full force and effect.

SECTION 50. EFFECTIVE DATE

This Ordinance shall take effect upon approval by the General Membership of the Lumbee Tribe of North Carolina in accordance with Article V of the Constitution, or upon any additional procedural requirements required by tribal law.

SECTION 51. CONSTRUCTION

This Ordinance shall be liberally construed to effectuate its purposes of transparency, accountability, and protection of tribal assets.

SECTION 52. RELATIONSHIP TO OTHER LAWS

Where this Ordinance conflicts with other tribal laws, this Ordinance shall control to the extent permitted by the Constitution of the Lumbee Tribe of North Carolina.